

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2012

By: Pae

AS INTRODUCED

An Act relating to public health and safety; amending 63 O.S. 2021, Section 2-1101, which relates to harm-reduction services; deleting sunset date; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 2-1101, is amended to read as follows:

Section 2-1101. A. ~~Until July 1, 2026, the~~ The following are hereby authorized to engage in harm-reduction services:

1. Government entities including, but not limited to, the State Department of Health and the Department of Mental Health and Substance Abuse Services; provided, no state dollars shall be used to purchase hypodermic needles;

2. Religious institutions or churches;

3. Nonprofit organizations;

4. For-profit companies;

5. Nongovernment entities partnering with a governmental agency; and

1 6. Tribal governments.

2 B. Those offering harm-reduction services shall register with
3 the State Department of Health and may engage in the following
4 activities in order to reduce the use of drugs, prevent outbreaks of
5 infectious diseases and reduce morbidity among people who use
6 injection drugs:

7 1. Offer referrals and resources to treat substance use
8 disorders;

9 2. Provide education on the risk of transmission of infectious
10 diseases, including human immunodeficiency virus (HIV) and viral
11 hepatitis;

12 3. Rapid testing for HIV, hepatitis C and sexually transmitted
13 infections (STIs);

14 4. Referrals for medical and mental health services;

15 5. Collect used hypodermic needles for safe disposal;

16 6. Possess and distribute hypodermic needles, cleaning kits,
17 test kits and opioid antagonists; and

18 7. Rapid substance testing products used, intended for use, or
19 fashioned specifically for the use in identifying or analyzing the
20 potency or toxicity of unknown substances.

21 C. Registered providers of harm-reduction services shall report
22 at least quarterly to the State Department of Health:

23 1. The number of clients served including basic demographic
24 information;

2. Number and type of referrals provided;
3. Number of syringes, test kits and antagonists distributed;
4. Number of used syringes collected; and
5. Number of rapid HIV and viral hepatitis tests performed including the number of reactive test results.

D. The State Commissioner of Health shall promulgate rules for the implementation of this section.

SECTION 2. This act shall become effective November 1, 2025.

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